

invoiced, Mr. Multani states punch-list and corrective work continued to be performed on the project through 11/30/2024. (Declaration of Rahim Multani, ¶ 8.) This is sufficient to show a probable validity of mechanic's lien as to the issue of whether it was timely recorded on 12/17/2024. The motion to expunge cannot be granted. DENIED.

The Polak Defendants' alternative request for an undertaking also cannot be granted. The court may require a claimant to give an undertaking as a condition of maintaining a lis pendens. (CCP § 405.34.) However, given the evidentiary showing supporting the post-September 2023 work and the lack of any contrary evidence provided by the Polak Defendants beyond the real estate agent's belief that work had not been performed and the lack of pictures supporting Plaintiff's declaration, an undertaking is not just. DENIED.

The prevailing party on a motion to expunge is entitled to attorney's fees unless the other party acted with "substantial justification" or that an award would be unjust. (CCP § 405.38.) While Defendants are the prevailing party on this motion, they do not provide any support for their request for attorneys' fees. DENIED

2.

CASE #	CASE NAME	HEARING NAME
CVPS2603416	COUNTY OF RIVERSIDE VS THE HEIRS, DEVISEES, AND SUCCESSORS OF S.R. MCCAVRAN	MOTION FOR ORDER FOR PREJUDGMENT POSSESSION BY COUNTY OF RIVERSIDE

Tentative Ruling: Granted.

No opposition filed.

Plaintiff County of Riverside ("County") having brought its motion for an order of prejudgment possession on for hearing, seeking possession of various permanent and temporary construction easements in the real property designated as County Project Parcel No. 0065-004B and 0065-014A ("Property") constituting portions of the property assigned Riverside County Assessor's Parcel Number 757-070-020, and which are more particularly described in the County's complaint on file in this action; and it appearing to the Court that:

- A. The County is entitled to take the Property by eminent domain;
- B. The County deposited in the Condemnation Deposits Fund with the Office of the State Treasurer the probable compensation to be awarded for the taking of the Property;
- C. The County is authorized by law to take prejudgment possession of the Property;
- D. There is an overriding need for the County to possess the Property before the issuance of final judgment;

E. The County will suffer a substantial hardship if the motion for prejudgment possession is denied or limited;

F. The hardship that the County will suffer if possession is denied or limited outweighs any hardship on any defendant or occupant that could be caused by the granting of the order of possession; and

G. Good cause exists for the County's prejudgment possession.

IT IS HEREBY ORDERED, under Code of Civil Procedure section 1255.460, as follows:

1. The County is authorized and empowered to enter upon and take prejudgment possession of the Property for the purposes described in the County's complaint on file in this action, and to remove from the Property any and all persons, obstacles, improvements, or structures of every kind or nature situated on the Property and to fully possess and use the Property on the 10th day after service of this Order upon the record owner or owners of the Property and any lawful tenants of the Property, if any, pursuant to Code of Civil Procedure section 1255.450.
2. A Writ of Assistance may issue ex parte upon affidavit of a representative of the County showing that the owner(s) or occupant(s), if any, have failed to deliver possession of the Property upon the demand of the County pursuant to this Order.
3. 3. Service of this Order shall be made in a manner specified in Code of Civil Procedure section 1255.450, subdivisions (d) and (f).

3.

CASE #	CASE NAME	HEARING NAME
CVPS2603418	COUNTY OF RIVERSIDE VS THE HEIRS, DEVISEE, AND SUCCESSORS OF STATEWIDE PACKING COMPANY	MOTION FOR ORDER FOR POSSESSION BY COUNTY OF RIVERSIDE

Tentative Ruling: Granted.

No opposition filed.

Plaintiff County of Riverside ("County") having brought its motion for an order of prejudgment possession on for hearing, seeking possession of various permanent and temporary construction easements in the real property designated as County Project Parcel No. 0065-009E; 0065-009G; 0065-009H; 0065-012A; 0065-012B; and 0065-012C ("Property") constituting portions of the property assigned Riverside County Assessor's Parcel Number 763-350-013, and which are more particularly described in the County's complaint on file in this action; and it appearing to the Court that:

A. The County is entitled to take the Property by eminent domain;